IN THE UNITED STATES ARMY COURT OF CRIMINAL APPEALS

UNITED STATES
Appellee

v.

Private First Class
Jordan R. Example
U.S. Army
Appellant

BRIEF ON BEHALF OF APPELLANT

Docket No. ARMY 20269999

Tried at Fort Example, Kansas, on 2 and 3 March 2026, before a general court-martial appointed by the Commander, Example Division.

TO THE HONORABLE, THE JUDGES OF THE UNITED STATES ARMY COURT OF CRIMINAL APPEALS

STATEMENT OF THE CASE

Appellant was tried by a general court-martial composed of members with enlisted representation. Contrary to his pleas, he was convicted of one specification of assault consummated by a battery and one specification of wrongful possession of a controlled substance, in violation of Articles 128 and 112a, Uniform Code of Military Justice, 10 U.S.C. §§ 928, 912a. The members sentenced him to a bad-conduct discharge, confinement for four months, and reduction to the grade of E-1. The convening authority approved the sentence as adjudged.

This case is before the Court under Article 66, UCMJ. Appellant's assignments of error raise a question of the admissibility of an out-of-court identification and a question of the sufficiency of the evidence on the possession specification.

STATEMENT OF FACTS

On the evening of 14 February 2026, a witness reported that a soldier had struck a civilian outside a barracks parking lot. The witness later identified appellant from a photographic array shown to her by a military police investigator. Her identification was the only evidence that appellant was the person who struck the civilian. Appellant had been at the barracks with two other soldiers, and the investigator did not record which photograph the witness pointed to before she was shown the array a second time.

Two days later, a search of appellant's wall locker produced a small quantity of a controlled substance in a sealed pouch. Appellant's roommate testified that the pouch belonged to a third soldier who had used the room for two weeks. The laboratory report identified the substance but did not establish when it was placed in the locker.

Q. Did you see the pouch before the search?

A. I did not know there was a pouch in that locker. I had not opened it.

(Trial Tr. 212.)[1]

[1] Citations to the record of trial are to the transcript pages of the two-day trial. The pagination in this fixture is invented.

ERRORS AND ARGUMENT

I. THE MILITARY JUDGE ERRED IN ADMITTING THE WITNESS'S PHOTOGRAPHIC IDENTIFICATION WITHOUT A SUPPRESSION HEARING.

Standard of Review

This Court reviews a military judge's ruling on the admissibility of identification evidence for an abuse of discretion, and reviews findings of fact for clear error. The Court reviews conclusions of law de novo.

Argument

The Government bears the burden of showing by a preponderance of the evidence that an out-of-court identification was reliable under the totality of the circumstances. The record shows that the investigator did not document the order in which the witness viewed the photographs, and that the second viewing followed a conversation with a second investigator about the suspect's description. Those facts were not addressed at trial, and the military judge did not make findings on them.

Appellant requested a suppression hearing. The military judge denied the request without a hearing, stating that the reliability of the identification went to weight. That ruling was error because the question of whether an identification procedure was suggestive is a threshold question for the military judge, and the military judge did not decide it. The error was not harmless, because the identification was the only evidence on the assault specification.

II. THE EVIDENCE IS LEGALLY INSUFFICIENT TO SUSTAIN THE CONVICTION FOR WRONGFUL POSSESSION.

Standard of Review

The Court reviews the legal and factual sufficiency of the evidence de novo. The test for legal sufficiency is whether any reasonable fact-finder could have found the essential elements beyond a reasonable doubt, viewing the evidence in the light most favorable to the prosecution.

Argument

Wrongful possession requires proof that the accused knowingly possessed the substance. Knowledge may be inferred from exclusive control of the place where the substance is found, but control is not exclusive where other people had regular access to the locker. The roommate testified that a third soldier used the room, and no evidence showed when the pouch was placed in the locker or who had keys to it. On this record, a reasonable fact-finder could not find beyond a reasonable doubt that appellant knew the pouch was there.

WHEREFORE, appellant respectfully requests that this Court set aside the finding of guilty to the Charge and its specification, dismiss the specification, and reassess the sentence or order a rehearing.

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Certificate of Service

I certify that a copy of the foregoing was sent via electronic submission to the Government Appellate Division on October 13, 2026.

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